

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Michael Estime,

Plaintiffs

-against-

City of New York, New York City Police Department,
New York City Police Officer Depergol, Tax ID 954724
and New York City Police Officers John Doe,Defendants
-----X

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Index Number:
Date Purchased:
Date Filed:
AMENDED
SUMMONSPlaintiff Estime's
residence is:
11 West 102 Street
New York, NY 10025

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: July 30, 2015
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(718) 585-2833

To: City of New York

New York City Police Department

New York City Police Officer Depergol, Tax ID 954724

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Michael Estime,

Plaintiffs

-against-

City of New York, New York City Police Department,
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Defendants
-----X

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: AMENDED
: VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his amended complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Michael Estime, (hereinafter referred to as "ESTIME") resides in New York County, State of New York.
2. That at all times hereinafter mentioned, the New York City Police Officer DePergol, Tax ID 954724 (hereinafter referred to as "DEPERGOL") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the arrest of Plaintiffs (hereinafter referred to as "DOES") were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or before about June 16, 2014 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. On or about July 29, 2014 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about May 7, 2014 at approximately 8:30 PM in the vicinity of East 169 Street and Boston Road, Bronx NY Plaintiff was on his way to go to a friend's home when he was stopped by DEPERGOL and DOES.

9. That DEPRGOL and DOES ordered Plaintiff to exit the car and handcuffed him.

10. That at no time was Plaintiff engaged in any unlawful or illegal behavior.

11. That Plaintiff was transported to 44 police precinct.

12. That when Plaintiffs arrived at the police precinct he was placed into a cell.

13. That after being held in cells for several hours in the 44 precinct, Plaintiff was released with a summons, summons number 4417942993, and charged with Disorderly Conduct.

14. That on September 22, 2014 the summons was dismissed by the Honorable Vincent Quattrochi of the Bronx Criminal Court.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

15. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 14, as if more fully stated herein at length.

16. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

17. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

18. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

19. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

20. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.

21. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.

23. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

24. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

25. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24, as if more fully stated herein at length.

26. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

29. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28, as if more fully stated herein at length.

30. At all times pertinent hereto, DEPERGOL and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

31. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that DEPERGOL and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

34. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff SPAIN.

36. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

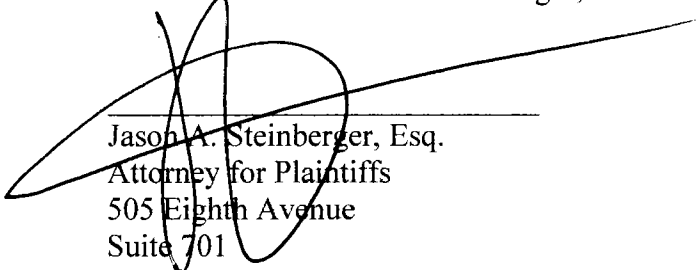
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

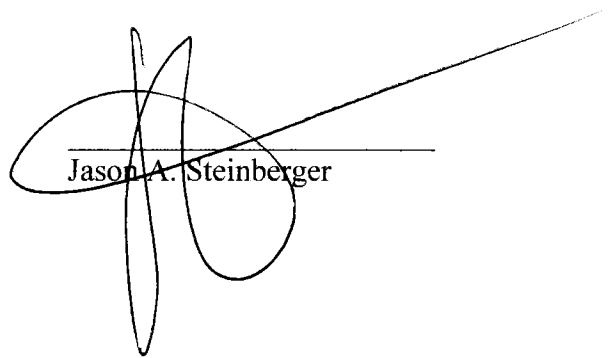


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: July 30, 2015



Jason A. Steinberger

Index Number:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MICHAEL ESTIME

Plaintiff

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT POLICE, NEW
YORK CITY POLICE OFFICER DEPERGOL, TAX ID 954724 AND NEW YORK CITY
POLICE OFFICERS JOHN DOE,**

Defendant.

AMENDED SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC

505 Eighth Avenue
Suite 701
New York, NY 10018

To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
☐ once of the Judges of the within named Court,

**NOTICE OF
SETTLEMENT**

at
on

200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018

To:
Attorney(s) for